

AR 96/2026, IN PLAIN LANGUAGE

A section-by-section translation of the AISH & ADAP General Regulation
In force July 2, 2026

This is a plain-language walk-through of **Alberta Regulation 96/2026**, the regulation that governs both AISH and the new ADAP program starting July 2, 2026. It follows the regulation in order, so you can read it side by side with the official text. Each entry gives the section number, the page in the printed regulation, and what it means in everyday words. Sections marked ★ are the ones highlighted in our printed copy. This guide has no legal force; the official regulation is the authority. We made it so the law is something a person can sit down and read.

SECTION 1 · printed p.3–5

Definitions

Defines the words the regulation uses. The two that matter most are the medical tests that decide which program you land in: a **“severe disability that permanently prevents employment”** (the AISH test) and a **“severe disability that substantially impedes employment, continuously or episodically”** (the ADAP test). It also defines cohabiting partner, dependent child, and facility.

SECTION 2 · printed p.5–6

Who can get a benefit at all

To receive any benefit you must be a Canadian citizen or permanent resident, ordinarily live in Alberta, and be 18 or older. You are not eligible if you receive Old Age Security, are in a household already receiving Income Support, live in certain institutions, or were convicted of benefit fraud in the past 12 months (a director can waive the fraud bar).

SECTION 3 · printed p.6–7

Extra requirements for AISH

For AISH specifically: your disability must **permanently prevent** employment, your income (counted under Schedule 1) must be below the benefit amount, and your assets (Schedule 2) must be \$100,000 or less. You provide medical or psychological reports, and the director decides **only** on your disability and its effect on your ability to work — nothing else.

SECTION 4 · printed p.7–8

Extra requirements for ADAP

For ADAP: your disability must **substantially impede but not prevent** employment, with the same income and asset tests. Section 3 versus Section 4 is the dividing line in the law itself: “prevents” routes you to AISH, “impedes” routes you to ADAP.

SECTION 5 · printed p.8–9

Keeping health benefits after ADAP

Lets someone who earned enough to come off ADAP keep their health benefits, as long as their assets are \$100,000 or less.

SECTION 6 · printed p.9**When your benefit starts**

Your benefit starts the first day of the month the director has the information they need to decide. There is no back-pay for any period before that.

SECTION 7 · printed p.9–10**How amounts are set and adjusted**

Lists which benefits this part covers and says the amounts are adjusted every January 1 by the “Alberta escalator,” an inflation index.

SECTION 8 · printed p.11 · ★ HIGHLIGHTED IN THE REGULATION**The core monthly cheque — the rates**

The living allowance for people who do not live in a facility. **\$1,940** if your disability permanently prevents employment (AISH). **\$1,740** if it substantially impedes employment (ADAP). If you and your partner both qualify, each receives **88%** of the amount (s.8(4)). This is the \$200 gap between AISH and ADAP, written into the regulation.

SECTION 9 · printed p.11–12**If you live in a facility**

For people in a facility such as continuing care: \$373 plus the accommodation charge, with most of it paid directly to the facility.

SECTION 10 · printed p.12 · ★ HIGHLIGHTED IN THE REGULATION**Child benefit**

One per household: **\$300** first child, **\$117** second, **\$88** third, **\$59** fourth, **\$30** for each additional child.

SECTION 11 · printed p.12**How your income lowers your cheque**

The clawback mechanism. Your income — and a non-client partner’s income — counted under Schedule 1, is subtracted from your benefit.

SECTION 12 · printed p.12–13**Personal benefit**

Occasional help a director or the Minister considers necessary, only if it is not available from another source. The amount is set by the Minister.

SECTION 13 · printed p.13–14**Health benefit**

Coverage for drugs, essential diabetic supplies, ambulance, optical, dental, and similar, through a health benefit card or Minister approval. It is payer of last resort — other coverage you have is used first.

SECTION 14 · printed p.14**Employment supports**

The Minister decides what employment supports exist and how often they are provided. Read this next to Section 15(4) below.

SECTION 15 · printed p.14–16 · ★ HIGHLIGHTED IN THE REGULATION**When a benefit can be refused, paused, reduced, or ended**

Sets out when a director can refuse, suspend, vary, or discontinue a benefit. Two parts to know. **Section 15(2)** applies if you do not file taxes (provide your Notice of Assessment) or do not make use of treatment or a referral. **Section 15(4), ADAP only**, lets a director cut your benefit if you “refused to seek or accept... reasonable employment” or “refused or neglected to participate in... an employment support.” This is a work-participation condition placed on a disability benefit.

SECTION 16 · printed p.16**What you must report**

You must tell the director about changes: starting or ending work, moving, a partner relationship starting or ending, a change in dependent children, an address change, and anything that could affect your benefit under Section 15.

SECTION 17–19 · printed p.16–17**Financial administrators**

A director can appoint someone to manage all or part of your benefit, in some cases without your consent. The administrator must act in your best interests and keep records, and appointments can be revoked.

SECTION 20–21 · printed p.18**Underpayments and debts**

If you were underpaid, the director pays the difference, minus anything you owe. To collect a debt to the government, the director can deduct from your monthly cheque.

SECTION 22–24 · printed p.18 · ★ HIGHLIGHTED IN THE REGULATION**Replaces the old rules; start and review dates**

This regulation replaces the old AR 91/2007, is set to expire April 30, 2030 for review, and **comes into force with section 6(16) of Bill 12 — July 2, 2026**. Section 24 is what ties the whole regulation to the July 2 date.

SECTION Sch. 1 · printed p.19+**How income is counted**

The detailed rules for what counts as income and what is exempt. The earned-income exemption amounts (AISH single \$350, ADAP single \$700, ADAP parent \$1,100, cohabiting partner \$1,500) are applied through here and set by the Minister — they are not printed as dollar figures in the main regulation, so for those numbers the government’s ADAP fact sheet is the source.

SECTION Sch. 2 · printed p.~26+**How assets are counted**

The rules behind the \$100,000 asset limit — what counts toward it and what is exempt.

SECTION Sch. 3 · printed p.31 · ★ HIGHLIGHTED IN THE REGULATION**Personal benefits — including the transition benefit**

Lists the personal benefits. **Section 13 of this schedule is the transition benefit** for people moved from AISH to ADAP. The regulation says it “may be provided”; the amount (\$200) and the end date (December 31, 2027) come from the government’s fact sheet, not the regulation text.

How to use this with the printed regulation: put each regulation page in a sheet sleeve with the matching plain-language note behind it. When someone asks “where does it say that,” turn to the section number, the proof is in their own words on the facing page.

The Alberta Disability System Breakdown — Advocate

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albertadisabilitybreakdown@outlook.com